

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----x
JOLANTA M. KLICH,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
WALLACE SHIELD NO. 25344 and POLICE
OFFICER SABOVIC SHIELD NO. 6136,

Defendants.
-----x

Index No.

Date Filed:

Plaintiff designates: New York
County as the place of trial

The basis of venue is:
Location of accident

S U M M O N S

Location of accident:
440 East 23rd Street
New York, New York 10010

To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney, within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, Judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 23, 2024

REDMOND LAW FIRM, PLLC

By: 
Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

Defendants' Addresses:

THE CITY OF NEW YORK

Comptroller of the City Of New York
Municipal Building
1 Center Street, Room 1225
New York, New York 10007

and

New York City Corporation Counsel
100 Church Street Station, 4th Floor
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza Path
New York, New York 10038

POLICE OFFICER WALLACE SHIELD NO. 25344

c/o The New York City Police Department
1 Police Plaza Path
New York, New York 10038

POLICE OFFICER SABOVIC SHIELD NO. 6136

c/o The New York City Police Department
1 Police Plaza Path
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
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VERIFIED COMPLAINT

Plaintiff, by her attorneys, REDMOND LAW FIRM, PLLC complaining of the defendants,
all upon information and belief, respectfully states and alleges as follows:

1. At all times herein mentioned, plaintiff, JOLANTA M. KLICH, was and still is a resident at 440 East 23rd Street, Apartment #MB, County of New York, City and State of New York.
2. That at all times herein mentioned, the occurrence that gave rise to this action occurred in the County of New York, City and State of New York.
3. That upon information and belief, at all times herein mentioned, the defendant THE CITY OF NEW YORK (hereinafter "CITY"), was and still is a municipal corporation duly organized and existing under and by the virtues of the laws of the State of New York.
4. That at all times herein mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYCPD") was a public benefit corporation, duly organized and existing under and by virtue of the laws of the State of New York.

5. At all times herein mentioned, defendant, POLICE OFFICER WALLACE SHIELD NO. 25344 (hereinafter "WALLACE"), was and still is a resident at County of New York, City and State of New York.

6. At all times herein mentioned, defendant, POLICE OFFICER SABOVIC SHIELD NO. 6136 (hereinafter "SABOVIC"), was and still is a resident at County of New York, City and State of New York.

7. Within ninety days (90) after the claim herein sued upon arose, the plaintiff, JOLANTA M. KLICH caused a Notice of Claim, in writing, to be served upon defendants, CITY and NYCPD, in accordance with Section 50-e of the General Municipal Law.

8. Although more than thirty (30) days have elapsed since service of such Notice of Claim, defendants, CITY and NYCPD, have neglected and refused to pay said claim or adjust same.

9. A hearing pursuant to General Municipal Law 50-h scheduled.

10. This action is commenced within one (1) year and ninety (90) days from July 11, 2023, the date the accident as herein set forth occurred.

11. That on July 11, 2023, and at all times herein mentioned, the defendant CITY operated the New York City Police Department and employed the officers of said department.

12. That on said date and at all times herein mentioned, the defendant CITY hired the New York City Police Department and employed the officers of said department.

13. That on said date and at all times herein mentioned, the defendant CITY supervised the New York City of Police Department and employed the officers of said department.

14. That on said date and at all times herein mentioned, the defendant, WALLACE, was an officer of the New York City Police Department and employed by the defendant, CITY.

15. That on said date and at all times herein mentioned, the defendant, SABOVIC, was an officer of the New York City Police Department and employed by the defendant, CITY.

16. At times mentioned herein, the officers of the New York City Police Department was acting under the color of law, to wit: the laws, statutes, ordinances, rules and regulations of the City of New York, State of New York, the United States and the Constitutions of the State of New York and United States.

**AS AND FOR A FIRST CAUSE OF ACTION FOR WRONGFUL ARREST ON BEHALF
OF PLAINTIFF JOLANTA M. KLICH**

17. Plaintiff JOLANTA M. KLICH repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-16 with the same force and effect as if fully set forth at length herein.

18. That on July 11, 2023, at approximately between 8:00 to 8:30 A.M. on the premises located at 440 East 23rd Street, Apartment #MB, New York, New York 10010, Plaintiff JOLANTA M. KLICH was without investigation, searched without a warrant, restrained and wrongfully and falsely arrested by defendants, WALLACE and SABOVIC.

19. The aforesaid was committed by the defendants upon the plaintiff with her awareness and without warrant, probable cause, justification, the plaintiff's consent or privilege of law.

20. The subject NYCPD officers was acting within the scope of their employment as an officers of the defendant CITY and acting under the color of law.

21. At no time did JOLANTA M. KLICH resist arrest.

22. That the defendants knew that they did not have probable cause to arrest the plaintiff and that the charges were false.

23. That July 11, 2023, the defendants, their agents, servants and/or employees, acted with intent to imprison the plaintiff.

24. The force used by the defendants against the plaintiff was excessive and not reasonably necessary.

25. That the Plaintiff, without her consent or just cause, was taken into custody on July 11, 2023, at approximately between 8:00 to 8:30 A.M.

26. The plaintiff was denied medication, food and sanitary facilities and further humiliated, degraded and demeaned, and the plaintiff was severely and seriously injured, suffered and still suffers and will continue for some time to come to suffer physical, emotional and mental injuries, and the plaintiff has become sick, sore, lame and disabled and so remain, and upon information and belief, the plaintiff is permanently injured.

27. That the plaintiff continues to receive medical assistance in an effort to heal her injuries and the effects thereof have not been fully determined and cannot be set forth by the plaintiff at this time.

28. As a result of the foregoing by the aforesaid defendants, the plaintiff has suffered serious and permanent physical and psychological injuries, and has been damaged in a sum that exceeds the jurisdictional limits of all lower courts of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR WRONGFUL ARREST,
ASSAULT AND BATTERY ON BEHALF OF PLAINTIFF JOLANTA M. KLICH**

29. Plaintiff JOLANTA M. KLICH repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-28 with the same force and effect as if fully set forth at length herein

30. That on July 11, 2023, at approximately between 8:00 to 8:30 A.M., and while in the custody of the defendants, the Plaintiff JOLANTA M. KLICH was without just cause, probable cause or provocation, and with negligent, and without investigation grabbed, shoved, searched, battered and restrained in an excessive manner and with excessive force by defendants, WALLACE and SABOVIC.

31. That on or about July 11, 2023, and while in the custody of the defendants the Plaintiff JOLANTA M. KLICH was intentionally grabbed, physically attacked, shoved, searched, battered, violated and humiliated, in the most egregious and excessive manner by defendants, WALLACE and SABOVIC, who was acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

32. Defendants, WALLACE and SABOVIC grabbed, shoved, searched, battered, and physically attacked JOLANTA M. KLICH over the premises, without any reasonable justification or lawful purpose for the amount of force used. Defendants, WALLACE and SABOVIC committed false imprisonment, abuse of process, wrongful arrest, use of excessive force, deprivation of civil liberties and malicious prosecution.

33. That on or about July 11, 2023, defendants, WALLACE and SABOVIC, acting as agents and on behalf of the CITY and NYCPD, within the scope of their employment, did intentionally, wilfully and maliciously physically attacked, grabbed, shoved, searched, assaulted and battered the Plaintiff JOLANTA M. KLICH in the most egregious and excessive matter in that

they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff JOLANTA M. KLICH and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner assaulted the plaintiff and/or offensive bodily contact to the Plaintiff JOLANTA M. KLICH and caused mental and psychological injuries.

34. Upon information and belief, defendants, WALLACE and SABOVIC acted pursuant the NYCPD's continuing custom or practice of condoning NYCPD's Officers' unjustified use of force, because they knew to a virtual certainty that they would not be disciplined for their unlawful use of force against JOLANTA M. KLICH.

35. Upon information and belief, the defendants, WALLACE and SABOVIC acted pursuant the NYCPD's continuing custom or practice of condoning NYCPD Officers' unjustified use of force while effectuating arrests and to penalize individuals for questioning their authority.

36. That by reason of the aforesaid intentional physically attack and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff JOLANTA M. KLICH suffered great and permanent mental and psychological injuries and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that she was otherwise damaged.

37. That as a result of the aforesaid physically attack, assault and battery the Plaintiff JOLANTA M. KLICH was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavour to cure

herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

38. That at all times hereinafter mentioned the actions of CITY, NYCPD, WALLACE and SABOVIC as described above were carried out in a deliberate, wilful, wanton, malicious and grossly negligent manner.

39. That by reason of the foregoing, Plaintiff JOLANTA M. KLICH has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING/SUPERVISION/RETENTION ON BEHALF OF PLAINTIFF JOLANTA M.
KLICH**

40. Plaintiff JOLANTA M. KLICH repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-39 with the same force and effect as if fully set forth at length herein.

41. That the CITY and NYCPD, their agents, servants and employees were negligent and careless and failed to exercise reasonable care and diligence in the hiring of the officers who committed the aforementioned acts and deprivations on the plaintiff on the aforementioned dates and places, careless in hiring, retaining, training, monitoring, retraining, supervising and promoting their employees including but not limited to defendants, WALLACE and SABOVIC, in that said police officers, as employees of CITY and NYCPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYCPD.

42. Prior to said date, and at all times herein mentioned, the defendant NYCPD failed to perform adequate background investigations and interviews of potential employees, agents and independent contractors; negligently performed investigations and interviews causing the

defendants to hire persons who were incompetent, poorly trained, inexperienced, indolent, lazy, immoral and negligent.

43. Prior to said date, and at all times herein mentioned, the defendant NYCPD failed to use reasonable care in the hiring and employment of its officers in that the defendant failed to ascertain that the police officers, who committed the aforementioned acts and deprivations on the plaintiff, were incompetent to do their work without danger of harm to others.

44. Prior to said date, and at all times here mentioned, the defendant NYCPD had knowledge of facts about the police officers it hired, who committed the aforementioned acts and deprivations on the plaintiff, that would lead a reasonably prudent person to conduct an investigation that could have uncovered the above stated information about the employees and failed to do so.

45. That the CITY and NYCPD failed to exercise due care and caution in their hiring, retaining, training and/or promoting practices in that CITY and NYCPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Police Department Guidelines.

46. That by reason of the above, the Plaintiff JOLANTA M. KLICH was injured in mind and body as she was arrested, prosecuted and rendered sick, sore and damaged.

47. That at all times hereinafter mentioned the actions of CITY, NYCPD and all defendants herein as described above were carried out in a deliberate, wilful, wanton, malicious and grossly negligent manner.

48. That by reason of the foregoing, Plaintiff JOLANTA M. KLICH has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOUR CAUSE OF ACTION FOR VIOLATION OF
CONSTITUTIONAL RIGHTS ON BEHALF OF PLAINTIFF JOLANTA M. KLICH**

49. Plaintiff JOLANTA M. KLICH repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 48 with the same force and effect as if fully set forth at length herein.

50. At all times mentioned herein and above, Defendants CITY and NYCPD employed defendants, WALLACE and SABOVIC as a police officer and was acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

51. Plaintiff JOLANTA M. KLICH is and at all times relevant herein, a citizen of the United States and a resident of New York County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

52. That on or about July 11, 2023, Defendants CITY, NYCPD, WALLACE and SABOVIC, without probable cause, reasonable cause or legal justification, did physically attack, search and commit a battery and grab the Plaintiff JOLANTA M. KLICH without a court authorized arrest warrant or search warrant and defendants did physically attack Plaintiff JOLANTA M. KLICH in an unlawful and excessive manner.

53. That on the aforementioned dates and places, the above actions of the defendants, WALLACE and SABOVIC, acting within scope of their employment as an NYCPD officers, under the laws, statutes, rules and regulations of the City of New York, State of New York, the United States and the Constitution of the United States did violate and deprive the rights, privileges and/or immunities of the plaintiff in the following respects:

- i. Freedom from assault;
- ii. Freedom from battery;
- iii. Freedom from illegal search and seizure;
- iv. Freedom from false arrest;
- v. Freedom from malicious prosecution;
- vi. Freedom from the use of excessive force during the arrest process;
- vii. Freedom from unlawful imprisonment;
- viii. Freedom from summary punishment;
- ix. Freedom from cruel and unusual punishment;
- x. Freedom from loss of liberty; and
- xi. Freedom from illegal search.

54. In addition to the above, Defendants CITY and NYCPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct their police officers, including the officers involved in this case and any and all unnamed officers involved in the physically attacking and battery of plaintiff, regarding the protection of the constitutional rights of citizens.

55. Defendants CITY, NYCPD, WALLACE and SABOVIC, subjected Plaintiff JOLANTA M. KLICH to such deprivation in a malicious, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff JOLANTA M. KLICH's rights and with deliberate indifference to the United States Constitution.

56. The direct and proximate result of the Defendants CITY, NYCPD, WALLACE and SABOVIC acts are that Plaintiff JOLANTA M. KLICH has suffered severe and permanent injuries, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

57. That by reason of the foregoing, Plaintiff JOLANTA M. KLICH has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state of the State of New York, together with said attorney's fees and costs incurred in prosecuting this action.

CLAIM FOR PUNITIVE DAMAGES

58. The Plaintiff makes a claim for punitive damages against the defendants in this action.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of the lower courts of the State of New York, together with the costs and disbursements of this action.

Dated: New York, New York
January 23, 2024

REDMOND LAW FIRM, PLLC

By: _____

Cornelius Redmond, Esq.
Attorneys for Plaintiff
80 Broad Street, Suite 1202
New York, New York 10004
(212) 799-8989

INDIVIDUAL VERIFICATION

STATE OF NEW YORK }
 } ss:
COUNTY OF NEW YORK }

JOLANTA M. KLICH, being duly sworn, deposes and says:

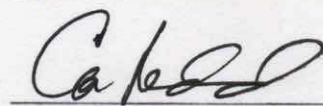
That I am the plaintiff in the within action.

I have read the foregoing Complaint and know the contents thereof and the same is true to the best of my knowledge, except as to those matters herein stated to be alleged upon information and belief and that as to those matters, I believe them to be true.

By:


JOLANTA M. KLICH

Sworn to before me this
23 day of January 2024


Notary Public

CORNELIUS J REDMOND
Notary Public-State of New York
No. 02RE6325096
Qualified in Kings County
Commission Expires 7/7/2027

SUPREME COURT OF THE STATE OF NEW YORK

Index No.

COUNTY OF NEW YORK

JOLANTA M. KLICH,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER WALLACE SHIELD NO. 25344 and POLICE OFFICER SABOVIC SHIELD NO.
6136,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

REDMOND LAW FIRM, PLLC

Attorneys for Plaintiff

80 Broad Street, Suite 1202

New York, New York 10004

(212) 799-8989

Pursuant to 22NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts
of New York State, certifies that, upon information and belief and reasonable inquiry, the
contentions contained in the annexed document are not frivolous



CORNELIUS REDMOND, ESQ.
REDMOND LAW FIRM, PLLC

[] Notice of Entry

that the within is a (certified) true copy of a

duly entered in the Office of the Clerk of the within named court on

20

[] Notice of Settlement

that an order

will be presented to the Hon.

of which the within is a true copy

one of the judges of the within court at

on

20

at

M.

Dated:

Yours, etc.

REDMOND LAW FIRM, PLLC

80 Broad Street, Suite 1202

New York, New York 10004

(212) 799-8989